

COVID-19 RELATED DELAY ADDENDUM

ADDENDUM dated _____ to Agreement of Sale
Between Buyer _____
And Seller _____
for Property known as _____

The following provisions supersede any conflicting language in the Agreement of Sale.

ACKNOWLEDGMENT: Buyer and Seller acknowledge that the COVID-19 virus is impacting real estate transactions in extraordinary ways.

In the event that timely compliance with the terms of the Agreement of Sale is not or becomes not possible or practical because of circumstances related to COVID-19, including, but not limited to: the declaration of a local, state, or national emergency; Buyer's or Seller's inability to travel to sign documents when documents cannot be handled by courier or electronic signatures are not accepted by the lender or title company; Buyer or Seller being subject to any voluntary or mandatory quarantine; Buyer or Seller is the party to another transaction that is delayed as a result of COVID-19, closings of or delays in related government and business services such as inspectors, repair contractors, mortgage lenders, settlement attorneys, title companies, recorder of deeds, or other entities involved in the transaction (**COVID-19 RELATED DELAY**), the party becoming aware of such delay shall as soon as reasonably possible, give notice of the circumstances to the other party in writing then the following shall apply:

1. **EXTENTION OF TIMEFRAMES:** Buyer and Seller agree to extend all timeframes that have not yet passed by up to Thirty Days (30).
2. **ACCESS.** Access to the property will still be required during the course of this transaction according to the terms of the Agreement of Sale. Buyer agrees to instruct those seeking access on Buyer's behalf to use reasonable efforts to follow appropriate personal cleanliness and physical distancing from other people.
3. **MORTGAGE FUNDING.** Even though Buyer may have received their mortgage commitment as provided in the Agreement of Sale, should the Buyer become ineligible to have their mortgage funded and to proceed to settlement as a result of the Buyer's lost income or other COVID-19 related reasons, then Buyer may cancel the Agreement of Sale, Buyer's deposit money shall be returned to Buyer, and neither party shall have any further liability under the Agreement of Sale. Buyer shall be responsible for any charges by the lender to extend the mortgage commitment or interest rate lock.
4. **WORKING IN GOOD FAITH.** In these unprecedented and uncertain times, the parties will work in good faith to perform according to the terms of the Agreement of Sale to complete Settlement.
5. **RIGHT TO TERMINATE:** Should the **COVID-19 RELATED DELAY** extend beyond the 30 Day extension, either Buyer or Seller, upon written notice to the other party, may declare the Agreement of Sale null and void and of no further legal effect. In such event, then the parties agree to execute a release for the return of Buyer's deposit(s), the Agreement of Sale will be VOID, and Buyer and Seller shall not be liable to each other for any damages.

All other terms and conditions of the Agreement of Sale remain in full force and effect.

Buyer Signature Date

Seller Signature Date

Buyer Signature Date

Seller Signature Date

NOTICE OF COVID-19 RELATED DELAY

THIS NOTIFICATION IS EFFECTIVE ONLY IF BUYER AND SELLER HAVE EXECUTED THE COVID-19 RELATED DELAY ADDENDUM.

Buyer gives notice of the following **COVID-19 RELATED DELAY**: Brief explanation of delay:

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Seller gives notice of the following **COVID-19 RELATED DELAY**: Brief explanation of delay:

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NOTIFYING PARTY

 DATE _____

NOTIFYING PARTY

 DATE _____